

Open Container

It is illegal to possess an open container of alcohol in a motor vehicle passenger area located on a public highway, regardless of whether the vehicle is being operated, stopped, or parked. Conviction of this offense is punishable by a fine not to exceed \$500.

Myths about Drinking Alcohol

Taking cold showers, drinking black coffee, or exercising will not make a person sober. Only time, based on body weight, number of drinks, and food intake can minimize the effects of alcohol. It takes about one hour for the body to rid itself of each drink consumed. If a person has been drinking, someone who has not been drinking should drive.

Texas Tough Alcohol-Related Laws for Minors**Zero Tolerance for Minors**

According to the Texas Alcohol Beverage Code, a minor is any individual who is under 21 years of age. A minor may not purchase, attempt to purchase, consume, or possess an alcoholic beverage. Since a minor should not possess alcohol, Texas passed zero tolerance legislation for minors who commit an offense under the non-driving alcohol-related laws and for minors who drive under the influence.

Zero tolerance means just that. Even if a minor is not intoxicated as defined under the DWI statute, but has any detectable amount of alcohol in his/her system while operating a motor vehicle in a public place or while operating a watercraft, the minor committed the criminal offense of Driving Under the Influence of Alcohol by a Minor (see Table 31).

Penalties for Non-Driving Alcohol-Related Offenses by Minors

The Texas Zero Tolerance law established penalties for minors who commit offenses under the non-driving alcohol-related offenses. A minor may not purchase, attempt to purchase, falsely state he/she is 21 years of age or older, or present any document indicating he/she is 21 years of age or older to a person engaged in the selling or serving of alcoholic beverages. A minor may not consume, or possess an alcoholic beverage. Persons who purchase, furnish, or sell alcohol to a minor can be fined up to \$4,000 and/or confined in jail for up to one year.

Table 26: Penalties for Non-Driving Alcohol-Related Offenses – Minors

Offense	Penalty
1st offense	Class C misdemeanor punishable by a fine of up to \$500, 8 to 12 hours of community service, mandatory attendance of an alcohol awareness course, and license will be suspended (or privilege denied if not licensed) for 30 days. If the minor is under 18, the parent may be required to also attend the alcohol awareness course.
2nd offense	Class C misdemeanor punishable by a fine of up to \$500, 20 to 40 hours of community service, may be required to attend an alcohol awareness course, and license will be suspended (or privilege denied if not licensed) for 60 days.
3rd offense (Under 17 years of age)	Class C misdemeanor punishable by a fine of up to \$500, 20 to 40 hours of community service, may be required to attend an alcohol awareness course, and license will be suspended (or privilege denied if not licensed) for 60 days or case can be transferred to Juvenile Court.
3rd offense (17 to 21 years of age)	Class B misdemeanor punishable by a fine of \$250 to \$2,000, 40 to 60 hours of community service, may be required to attend an alcohol awareness course, confinement in jail not to exceed 180 days, and license will be suspended (or privilege denied if not licensed) for 180 days. Minors are not eligible for deferred disposition or adjudication on the third conviction and every conviction after.

In addition to the above penalties, if a minor is convicted of any moving vehicle violation while suspended due to a non-driving alcohol-related offense (listed above) they are subject to the penalties of Driving While License Invalid (DWLI).

Implied Consent Laws for Minors

A minor implies their consent to take one or more breath or blood specimen for analysis if they are arrested for operating a motor vehicle or watercraft in a public place while intoxicated, or if there is any detectable or noticeable amount of alcohol in their system while operating a motor vehicle in a public place as deemed by an officer. The breath or blood specimen will determine if alcohol is present in their body. It will also identify the amount of alcohol in their system. Additionally, the breath or blood specimen can identify the presence of any other controlled substances or drugs.